

Attachment to police report no. BR. L3.011008/2024 dated 01/03/2024

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Police Local Police Zone SOUTH (PZ ZUID) – 5341 TER D3 – Pool “Kantschriften” Schaatsstraat 44, 1190 Forest (T) 02/559.80.00 – (F) 02/559.80.09

CATEGORY III/2 — ADULT SUSPECTS OF OFFENCES FOR WHICH A PRISON SENTENCE MAY BE IMPOSED Interview following a written invitation, with assistance of counsel

Part 1

On 12 March 2024, 15:57, we, Drafting Officer Becker Eric, First Inspector of the Local Police Zone South, prior to proceeding with the interview of:

Name, first names: VAN DER AA Stephane, Hans, Rudy Born: Ostend, 25/10/1976 Nationality: Belgium
Registered address: 1190 Forest, Van Volxemlaan 208, box bs31

— hereby record that the person concerned was invited in writing on 01/03/2024.

The written invitation contains a brief statement of the facts and mention of the rights of the person concerned. The statement of rights was delivered together with the invitation.

During the interview, the person concerned is assisted by Master (Attorney) LAMBERS Nikolaas and VAN DE VENNE Esther.

Footnotes: 1. Not deprived of their liberty. 2. The written invitation states all rights and serves as notification of those rights. 3. Delete where not applicable: this does not apply to an invitation for a subsequent interview regarding the same facts.

Part 2

Interview in Forest on 12/03/2024 at 16:00

VAN DER AA Stephane, Hans, Rudy, who, when questioned, states: “I wish to express myself in French and to use this language in the legal proceedings.”

Actual interview

Q: Please state your identity. A: My name is VAN DER AA Stephane, Hans, Rudy. Born in Ostend on 25/10/1976. Nationality: Belgium. Registered address: 1190 Forest, Van Volxemlaan 208, box bs31.

Q: Do you confirm that you have been informed of your rights and that you understand them? A: Yes, I confirm this.

Q (to counsel): Master, do you confirm that your client has indeed understood his rights? A: Yes, absolutely.

Q: Do you agree to answer our questions? A: Yes.

Q: What is your family situation? A: I am single.

Q: What is your professional situation? A: I am currently unemployed and on disability. Note: Since 08/2020, the period of my dismissal.

Q: What are your income and fixed expenses? A: My benefit is 2,000 EUR/month and I pay a mortgage of about 500 EUR/month.

Q: What are your means of communication? A: My phone number is 0493/70 16 01; it's a Proximus subscription in my name. I give my Twitter account: stepvda (also for Instagram, ...).

Q: Have you previously had any problems with the justice system? A: No.

Q: Do you know the reason for your presence for this interview? A: Not precisely.

Q: Do you wish to make a spontaneous statement? A: No.

Q: Do you know the person named VANRILLAER Boris? A: Yes. Note: He is a former colleague from my work. Note: [Company name illegible]. Note: In recent years I worked there as "director-strategy." Note: I started working there in 01/2004 and ended in 08/2020.

Q: In his complaint, the said VANRILLAER Boris states that since your dismissal you have made statements that put certain persons and the company in a bad light. Can you explain this? A: In 2019 I was on sick leave and monitored by a psychologist. Normally, in 2020 I was going to return to work (3/5 time). In March 2020 I resumed work. The first weeks went well. Mid-March 2020 we were no longer allowed to go to the office because of the COVID pandemic. At the end of March I decided (with my psychologist) to wait a bit before resigning from my job. At the beginning of April 2020 I noticed that Boris was not giving me clear instructions about my duties. In mid-May I decided to submit my resignation, which I did—by email. Afterwards I had a discussion with "Alan," who was surprised about my resignation. I state that my resignation request was acknowledged [verbal/illegible].

Ultimately, in 08/2020 I received my dismissal.

For information, a few months earlier my health insurance fund had agreed that I would be 100% on mutuality, which meant my employer did not have to pay severance.

After my dismissal I found it very difficult to accept the letter of motivation [likely: dismissal letter; "motivatiebrief" in the scan].

I experienced this situation very badly, as a result of which in 09/2020 I unfortunately made a desperate act (a suicide attempt).

Between 2020 and 2023 I had no contact with my former employer. In 2023 I had regained my emotional balance and I thought about the past. I did not understand why I received a dismissal, although before that I myself had offered to resign, and I had never received a negative evaluation during my 16-year career (some supporting emails exist).

Therefore, in 2023 I tried to re-establish contact with my former employer. I asked to have an informal discussion with them so I could understand their reasons; during my 16-year career I had never received a negative evaluation.

At the beginning of 08/2023 I sent my publication project to "SCHOOL S." (position CO). In response I received a phone call from ROGERS Michael, who told me they would investigate the matter (internal and external investigation—I actively cooperated with this investigation by giving an interview at their request). I received the conclusions of their investigation, namely that there were no allegations regarding matters of concern. I never received the substantive content of that investigation, as it was confidential for them. In the end I concluded that no informal discussion would be possible with my former employers.

On 01/01/2024 I decided to publish my article on LinkedIn, after which around 07/01/2024 I received a summons.

Q: Can you explain the title used in your publication? A: The title was provocative because I wanted to get a reaction from Boris and my former employer.

Q: What does Boris mean by the term "harassment relating to homophobia"? A: Since I worked there, I was warned by DAOUK Samir not to publicize my sexual orientation. I was aware that Boris knew my sexual orientation and he therefore sometimes made inappropriate remarks about it.

Q: What does Boris mean by “reference to the Nazi prison guards”? A: That remark was more an allegation about the reconciliation of two people in senior positions, which Boris apparently did not understand.

Q: Do you have anything to correct or add to your statement? A: No.

Counsel: Was this remark an influence or a coaching of the interview of Mr. AA [illegible phrase]?

A: There was an internal/external investigation, the conclusions of which were that the allegations were unfounded. We invite the Public Prosecutor’s Office to order disclosure of the investigation. The investigation and the settlement between Mr. AA and the former employer appear to have at least concealed criminal offences or serious violations of labour-welfare legislation.

I have read my statement. I do not wish to add or amend anything.

I acknowledge that I can obtain a free copy of the text of my interview. I answer positively and you now hand me a copy.

The interview ended on 12/03/2024 at 18:15. After reading, he persists and signs.